IN THE DISTRICT COURT HELD AT ABURI, EASTERN REGION, ON MONDAY, THE 9TH DAY OF JUNE, 2025, BEFORE HER WOSHIP BIANCA GYAMERA-BEEKO SITTING AS AN ADDITIONAL MAGISTRATE

COURT CASE NO: ER/AB/DC/A4/10/25

SETH ANNANG
VRS

IRENE ANNANG

JUDGMENT

The Petitioner herein is a farmer and the Respondent, a businesswoman. The parties were married under the ordinance on 16th May 2015 at the Nsawam Kingdom Hall. The marriage produced two issues, Collins Adjetey aged 9 and Karen Adjeley Annang aged 6. By a petition filed on 22nd April, 2025, the Petitioner says that the marriage has broken down beyond reconciliation. He complains that the Respondent does not love and respect him and has admitted as much before their respective families and church members. The Respondent also abandoned the matrimonial home five years ago, and for a long time now, they have not lived together as husband and wife. He prays for dissolution of the marriage and for custody of the issues to be granted to the Respondent with reasonable access granted to him.

The Respondent admits that she does not love the Petitioner and that that has been the case since the beginning of their courtship. She explains that her lack of love for Petitioner is due to certain behaviours of his. She is however hopeful that she would one day develop love for the Petitioner and hopes that the Petitioner would change those behaviours that have made it difficult for her to love him. She prays that the court grants them a separation rather than a divorce because she is a Jehovah Witness and divorce is contrary to her faith and

unpleasant to God. She agrees that custody of the two issues be granted to her with reasonable access granted to the Petitioner.

The issue of custody is therefore not in dispute as parties are in agreement. The only issue left for the court to determine is whether the marriage has broken down beyond reconciliation or not.

The Petitioner bears the burden of proving that the marriage has broken down beyond reconciliation; see section 14 of the Evidence Act, 1975 (Act 323). The Petitioner is also required to prove his case upon a preponderance of probabilities in accordance with section 12 of the Evidence Act 1975 (NRCD 323).

In Ghana, the sole ground for granting a divorce is that the marriage has broken down beyond reconciliation; section 1(2) of the Matrimonial Causes Act, 1971 (Act 367). For the purpose of showing that the marriage has broken down beyond reconciliation, section 2(1) of Act 367 requires that the petitioner satisfies the court of one or more of the following facts:

(d) that the respondent has committed adultery and that by reason of such adultery the petitioner finds it intolerable to live with the respondent; or

(e) that the respondent has behaved in such a way that the petitioner cannot reasonably be expected to live with the respondent; or

(f) that the respondent has deserted the petitioner for a continuous period of at least two years immediately preceding the presentation of the petition; or

(g) that the parties to the marriage have not lived as man and wife for a continuous period of at least two years immediately preceding the presentation of the petition and the respondent consents to the grant of a decree of divorce; provided that such consent shall not be unreasonably withheld, and where the Court is satisfied that it has been so withheld, the Court may grant a petition for divorce under this paragraph notwithstanding the refusal; or

(h) that the parties to the marriage have not lived as man and wife for a continuous period of at least five years immediately preceding the presentation of the petition; or

(i) that the parties to the marriage have, after diligent effort, been unable to reconcile their differences.

It is the petitioner's case that parties have not lived together for about 5 years. The Respondent in paragraph 8 of her witness statement admitted this. She stated that she left the house about 5 years ago because the quarrels were unbearable. The petitioner therefore is relieved of the obligation to prove the veracity of this allegation; see the Supreme Court decision in the case of **Re Asere Stool; Nikoi Olai Amontia iv (substituted by Tafo Amon ii v. Akotia Oworsika 111 substituted by Laryea Ayiku iii (2005-2006) SCGLR 637**.

The evidence of both parties before me also shows that parties have been unable to reconcile their differences in spite of diligent effort. Even though the Respondent does not want a divorce, her prayer for a separation indicates that she is not willing to live with the Petitioner as his wife. The concept of separation is alien to our matrimonial laws; you either want to be married or you do not. There is room for any sort of middle ground. Quite frankly, to insist that a person whom you admit you do not love should be legally bound to you in marriage only to make you tick a religious box is extremely selfish and inconsiderate. Parties have been married for ten years so if the Respondent was going to develop any love for the Petitioner, she would certainly have done so by now. Consequently, I find that the marriage has broken down beyond reconciliation by reason of the parties not living together for the past five years, and their inability to reconcile their differences in spite of diligent effort. The marriage celebrated between the parties on 16th May 2015 is hereby dissolved.

Final Orders

1. The marriage celebrated between the parties on 16th May 2025 has broken down beyond reconciliation and is dissolved.
2. The marriage certificate with license no. … and certificate no. … is hereby cancelled.
3. The Respondent is granted custody of the two issues, Collins Adjetey and Karen Adjeley Annang, with reasonable access granted to the Petitioner.
4. I make no order as to costs.

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H/W BIANCA GYAMERA-BEEKO